



CITY COUNCIL MEETING

Council Chambers

Thursday, December 19, 2024

MINUTES

1. **Call to Order and Roll Call:**

Mayor Brockett called the meeting to order at 6:00 p.m.

Council Members present: Benjamin, Brockett, Folkerts, Marquis, Schuchard,
Speer, Wallach, Winer
Present virtually: Adams

A. **Dr. Dick Jessor Day Declaration** presented by Council Member Wallach

B. **National Homeless Persons' Memorial Day Declaration** presented by Council Member Benjamin

2. **Open Comment:**

(Public comments are a summary of actual testimony. Full testimony is available on the council web page at: <https://bouldercolorado.gov/city-council> > Watch Live or Archived Meetings.)

Open Comment **opened** at 6:22 p.m.

➤ **In-Person (Council Chambers):**

1. Macon Cowles spoke on vision zero and climate action plan update
2. Eric Gross spoke on antisemitism
3. Evan Ravitz spoke on various subjects

Due to disruptions in Chambers, Mayor Brockett called a recess at 6:29 p.m. and Chambers was cleared. Council reconvened at 6:48 p.m.

4. Rokhiya Ngom spoke on humanity
5. Laura Kaplan spoke on climate action plan
6. Aaron Brooks spoke on City Council processes
- ~~7. Dylan Barlow - **withdrew**~~
8. Daniel Howard spoke on climate action under BVCP regarding compact land use forms
- ~~9. Graham Hill spoke on bicycle theft - **did not show**~~

➤ **Virtual:**

10. Amy Kaufman spoke on community mental health support and Israel support
11. Luann Myers spoke on stopping hate speech and antisemitism in the Boulder community
12. Foster Goodwill spoke on foreign affairs
13. Hannah Davis spoke on climate action plan update
14. Lynn Segal spoke on Gaza, library district
15. Michael Mills reaffirming Vision Zero and including “compact land use and transportation choices” in climate action plan
16. Adilene Marquez spoke on Free Palestine
17. Richard Sax spoke on antisemitism is un-American
- ~~18. Jeffrey Levine - **withdrew**~~
19. Rachel Namordi spoke on stop antisemitism
20. Mindy Miller spoke on staying focused on the issues the city is facing

Open Comment **closed** at 7:15 p.m.

3. Consent Agenda

- A. Consideration of a motion to **accept the October 3, 2024 Regular City Council Meeting Minutes**
- B. Consideration of a motion to **accept the October 10, 2024 Special City Council Meeting Minutes**
- C. Consideration of a motion to **accept the October 17, 2024 Regular City Council Meeting Minutes**
- D. Consideration of a motion to **amend the 2025 Council Meeting Calendar**

- E. Consideration of a motion to **authorize the City Manager to enter into 20-year license agreement with Public Service Company of Colorado, dba Xcel Energy, providing access to the Valmont Butte property** in order to perform groundwater monitoring and remediation
- F. **Introduction**, first reading and consideration of a motion to **order published by title only Ordinance 8666**, amending Chapters 9-2, **“Review Processes,”** 9-6, **“Use Standards,”** and 9-8, **“Intensity Standards”** of Title 9, **“Land Use Code,”** B.R.C. 1981, to **amend density and intensity standards to allow development of additional dwelling units** in the Residential – Rural 1 (RR-1), Residential – Rural 2 (RR-2), Residential – Low 1 (RL-1), Residential – Medium 1 (RM-1), and Residential Mixed – 1 (RMX-1) zoning districts **and to amend review procedures and use standards to reduce regulatory requirements for certain residential developments, and setting forth related details**
- G. **Introduction**, first reading and consideration of a motion to **order published by title only Ordinance 8677 designating the property at 3168 6th St., City of Boulder, Colorado, to be known as the Leach-Moritz House, as an individual landmark** under Chapter 9-11, **“Historic Preservation,”** B.R.C. 1981; and setting forth related details
- H. **Introduction**, first reading and consideration of a motion to **order published by title only Ordinance 8678 repealing and reenacting Section 7-4-78, “Misuse of a Wireless Telephone,”** B.R.C. 1981, to **align the use of mobile electronic devices while driving a motor vehicle within City of Boulder boundaries** with state law; and setting forth related details
- I. **Introduction**, first reading and consideration of a motion to **order published by title only and adopt by emergency measure Ordinance 8679 adopting Supplement 161 which codifies previously adopted ordinances** as amendments to the Boulder Revised Code, 1981; and setting forth related details
- J. **Introduction**, first reading and consideration of a motion to **order published by title only Ordinance 8680 designating the property at 575 Euclid Ave., City of Boulder, Colorado, to be known as the Sirotkin – Woodman House, as an individual landmark** under Chapter 9-11, **“Historic Preservation,”** B.R.C. 1981; and setting forth related details
- K. **Second reading** and consideration of a motion to **adopt Ordinance 8658 amending Section 2-3-7, “Landmarks Board,”** and Chapter 9-11 **“Historic Preservation,”** B.R.C. 1981, to **remove the appointment of a Planning Board member to the Landmarks Board and revise the review process timeframes** and approval expiration dates; and setting forth related details
- L. **Second reading** and consideration of a motion to **adopt Ordinance 8676 amending Sections 3-7-2, “Imposition and Rate of Tax,”** 4-2-3, **“Authority to Issue City**

Licenses,” and 4-20-2, “Alcohol and Fermented Malt Beverage License and Application Fees,” B.R.C. 1981, converting the license of lodging and entertainment facility to two separate licenses to comply with a change to state law; and setting forth related details

- M. **Third reading and consideration of a motion to adopt Ordinance 8670 amending Section 5-7-5, “City Manager Authority to Grant Permission to Consume Alcoholic Beverages on City-Owned Property”, B.R.C. 1981, to allow alcohol consumption at farm-to-table events on open space properties with a current farm crop and grazing lease in good standing; and setting forth related details**
- N. **Consideration of a motion to adopt Resolution 1358 reaffirming the City of Boulder’s commitment to Vision Zero**
- O. **Consideration of a motion to approve the October 24, 2024, Study Session Summary regarding the Police Oversight Update**

Motion	Made By/Seconded	Vote
Motion to PASS the consent agenda items 3A – 3O	Benjamin / Speer	Carried 9:0 NAY on 3N: Marquis and Wallach

4. **Call-Up Check-In**

5. **Public Hearings**

- A. **Second reading and motion to **adopt by emergency measure** Ordinance 8665, amending Title 9, “Land Use Code,” B.R.C. 1981, to implement Senate Bill 23-290 and locally permit natural medicine businesses, defined in the state bill as Natural Medicine Healing Centers, Cultivation, Production, and Testing Facilities; and setting forth related details**

Karl Guiler, Senior Policy Advisor, provided a presentation and answered questions from Council.

Joel Wagner, Interim Chief Financial Officer, also answered questions from Council.

The public hearing **opened** at 7:51 p.m. and the following spoke:

➤ **In-Person:**

- 1.—Charlies Lief - **withdrew**
- 2.—~~Ken Weingardt~~ **moved to virtual**

3. Erik Castro
4. ~~Nicole Lussow~~ *moved to virtual*

➤ **Virtual:**

5. Natasia Poinsatte
6. Nicole Lussow

The public hearing **closed** at 7:55 p.m.

Hella Pannewig, Senior Counsel, answered questions from Council.

Mayor Brockett made a motion to continue Ordinance 8665 with direction to staff to draft amendments to the ordinance based on Council direction. Mayor Pro Tem Folkerts seconded the motion. The motion was carried with a vote of 9:0.

6. **Matters from the City Manager**

A. **Climate Action Plan Update**

Jonathan Koehn, Climate Initiative Director, Yael Gichon, Climate Initiatives Principal Project Manager and Kate Galbo, Senior Data Analyst provided a presentation and answered questions from Council.

Carlos Hernan Villanueva, an Environmental Advisory Board member, provided feedback from the board and answered questions from Council.

Carolyn Elam, Sustainability Senior Manager, and Brett Kencairn, Senior Policy Advisor, answered questions from Council.

7. **Matters from the City Attorney**

8. **Matters from the Mayor and Members of Council**

9. **Discussion Items**

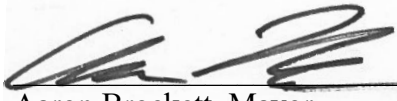
10. **Debrief**

11. **Adjournment**

There being no further business to come before Council at this time, by motion regularly adopted, the meeting was **adjourned by Mayor Brockett at 10:06 p.m.**

Approved this 6th day of February 2025.

APPROVED BY:


Aaron Brockett, Mayor

ATTEST:


Elesha Johnson, City Clerk